

# Exhibit A

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| <b>DISTRICT COURT, COUNTY OF ARAPAHOE</b><br>7325 S. Potomac Street, Centennial, CO 80112                                                                                                                                                                                                                                                                                                                                                            | DATE FILED: June 10, 2019 5:19 PM<br>FILING ID: D8702855870E1<br>CASE NUMBER: 2019CV31353            |
| <b>Plaintiff:</b> Titan Manufacturing Solutions, Inc., <i>a Nevada corporation</i> ,<br><br>v.<br><br><b>Defendants:</b> National Cost, Inc., d/b/a National Tax Group, <i>a Florida corporation</i> ; Lee Ferry, <i>an individual</i> , and Stephanie Reynoso, <i>an individual</i> .                                                                                                                                                               | <input type="checkbox"/> <b>COURT USE ONLY</b> <input type="checkbox"/><br><br>Case No.:<br><br>Div: |
| <b>AKERMAN LLP</b><br>Colin L. Barnacle (Reg. No. 33657)<br>Christopher J. Eby (Reg. No. 43806)<br>Ashley E. Calhoun (Reg. No. 44510)<br>1900 Sixteenth Street, Suite 1700<br>Denver, Colorado 80202<br>Telephone: (303) 260-7712<br>Facsimile: (303) 260-7714<br>Email: colin.barnacle@akerman.com<br>Email: christopher.eby@akerman.com<br>Email: ashley.calhoun@akerman.com<br><i>Attorneys for Plaintiff Titan Manufacturing Solutions, Inc.</i> |                                                                                                      |
| <b>SUMMONS</b>                                                                                                                                                                                                                                                                                                                                                                                                                                       |                                                                                                      |

**TO THE ABOVE NAMED DEFENDANT:**

Lee Ferry  
6801 Lake Worth Road, Suite 209  
Greenacres, FL 33467

**YOU ARE HEREBY SUMMONED** and required to file with the Clerk of this Court an answer or other response to the attached Complaint. If service of the Summons and Complaint was made upon you within the State of Colorado, you are required to file your answer or other response within 21 days after such service upon you. If service of the Summons and Complaint was made upon you outside of the State of Colorado, you are required to file your answer or other response within 35 days after such service upon you. Your answer or counterclaim must be accompanied with the applicable filing fee.

If you fail to file your answer or other response to the Complaint in writing within the applicable time period, the Court may enter judgment by default against you for the relief demanded in the Complaint without further notice.

DATED this 10th day of June, 2019.

**AKERMAN LLP**

/s/ Christopher J. Eby

Colin L. Barnacle, # 33657

Christopher J. Eby, # 43806

Ashley E. Calhoun, #44510

*Attorneys for Plaintiff Titan Manufacturing  
Solutions, Inc.*

**This Summons is issued pursuant to Rule 4, C.R.C.P., as amended. A copy of the Complaint must be served with this Summons. This form should not be used where service by publication is desired.**

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| <b>DISTRICT COURT, COUNTY OF ARAPAHOE</b><br>7325 S. Potomac Street, Centennial, CO 80112                                                                                                                                                                                                                                                                                                                                                            |  | DATE FILED: June 11, 2019 9:52 AM<br>FILING ID: 9D8C28CD6B7C7<br>CASE NUMBER: 2019CV31353                            |
| <b>Plaintiff:</b> Titan Manufacturing Solutions, Inc., <i>a Nevada corporation,</i><br><br>v.<br><br><b>Defendants:</b> National Cost, Inc., d/b/a National Tax Group, Inc., <i>a Florida corporation</i> ; Lee Ferry, <i>an individual</i> , and Stephanie Reynoso, <i>an individual</i> .                                                                                                                                                          |  | <input type="checkbox"/> <b>COURT USE ONLY</b> <input type="checkbox"/><br><br>Case No.: 2019CV031353<br><br>Div: 21 |
| <b>AKERMAN LLP</b><br>Colin L. Barnacle (Reg. No. 33657)<br>Christopher J. Eby (Reg. No. 43806)<br>Ashley E. Calhoun (Reg. No. 44510)<br>1900 Sixteenth Street, Suite 1700<br>Denver, Colorado 80202<br>Telephone: (303) 260-7712<br>Facsimile: (303) 260-7714<br>Email: colin.barnacle@akerman.com<br>Email: christopher.eby@akerman.com<br>Email: ashley.calhoun@akerman.com<br><i>Attorneys for Plaintiff Titan Manufacturing Solutions, Inc.</i> |  |                                                                                                                      |
| <b>CIVIL CASE COVER SHEET</b>                                                                                                                                                                                                                                                                                                                                                                                                                        |  |                                                                                                                      |

1. This cover sheet shall be filed with the initial pleading of a complaint, counterclaim, cross-claim or third party complaint in every district court civil (CV) case. It shall not be filed in Domestic Relations (DR), Probate (PR), Water (CW), Juvenile (JA, JR, JD, JV), or Mental Health (MH) cases. Failure to file this cover sheet is not a jurisdictional defect in the pleading, but may result in a clerk's show cause order requiring its filing.
2. Simplified Procedure under C.R.C.P. 16.1 **applies** to this case **unless** (check one box below if this party asserts that C.R.C.P. 16.1 **does not** apply):
  - ☐ This is a class action, forcible entry and detainer, Rule 106, Rule 120, or other similar expedited proceeding, **or**
  - ☒ This party is seeking a monetary judgment against another party for more than \$100,000, including any penalties and punitive damages, but excluding attorney fees, interest and costs, as supported by the following certification:

By my signature below and in compliance with C.R.C.P. 11, based upon information reasonably available to me at this time, I certify that the value of this party's claims against one of the other parties is reasonably believed to exceed \$100,000."

**Or**

☐ Another party has previously filed a cover sheet stating that C.R.C.P. 16.1 does not apply to this case.

3. ☐ This party makes a **Jury Demand** at this time and pays the requisite fee. See C.R.C.P. 38. (Checking this box is optional).

**Date:** June 10, 2019

s/ Christopher J. Eby

**Signature of Party or Attorney for Party**

**NOTICE**

This cover sheet must be served on all other parties along with the initial pleading of a complaint, counterclaim, cross-claim, or third party complaint.

|                                                                                                                                                                                                                                                                                                                                                                                                                                                      |                                                                                                      |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------|
| <b>DISTRICT COURT, COUNTY OF ARAPAHOE</b><br>7325 S. Potomac Street, Centennial, CO 80112                                                                                                                                                                                                                                                                                                                                                            | DATE FILED: June 10, 2019 5:19 PM<br>FILING ID: D8702855870E1<br>CASE NUMBER: 2019CV31353            |
| <b>Plaintiff:</b> Titan Manufacturing Solutions, Inc., <i>a Nevada corporation</i> ,<br><br>v.<br><br><b>Defendants:</b> National Cost, Inc., d/b/a National Tax Group, <i>a Florida corporation</i> ; Lee Ferry, <i>an individual</i> , and Stephanie Reynoso, <i>an individual</i> .                                                                                                                                                               | <input type="checkbox"/> <b>COURT USE ONLY</b> <input type="checkbox"/><br><br>Case No.:<br><br>Div: |
| <b>AKERMAN LLP</b><br>Colin L. Barnacle (Reg. No. 33657)<br>Christopher J. Eby (Reg. No. 43806)<br>Ashley E. Calhoun (Reg. No. 44510)<br>1900 Sixteenth Street, Suite 1700<br>Denver, Colorado 80202<br>Telephone: (303) 260-7712<br>Facsimile: (303) 260-7714<br>Email: colin.barnacle@akerman.com<br>Email: christopher.eby@akerman.com<br>Email: ashley.calhoun@akerman.com<br><i>Attorneys for Plaintiff Titan Manufacturing Solutions, Inc.</i> |                                                                                                      |
| <b>VERIFIED COMPLAINT</b>                                                                                                                                                                                                                                                                                                                                                                                                                            |                                                                                                      |

Plaintiff, Titan Manufacturing Solutions, Inc. ("Titan", for its Verified Complaint against Defendants National Cost, Inc., Lee Ferry, and Stephanie Reynoso (collectively, "Defendants"), states as follows:

### **INTRODUCTION**

Titan, a leading developer of research and development ("R&D") Tax Credit software, brings this action to address Defendants' breach of contract, misappropriation of trade secrets, conversion of proprietary information, and other unlawful conduct. In willful violation of the software Licensing Agreement (defined below) and User Terms of Service (defined below) they entered into with Titan, Defendants have disclosed confidential information, unlawfully shared aspects of Titan's software applications and platform, granted unauthorized access to Titan's software applications and platform, and attempted to create a derivative work of and reverse engineer Titan's software applications and platform. As a result of Defendants' conduct, Titan is suffering and will continue to suffer irreparable injuries for which there is no adequate remedy at

law. By this Verified Complaint, Titan respectfully requests the Court enter preliminary and permanent injunctions to prevent Defendants' further breach of the Licensing Agreement and User Terms of Service while the remaining claims seeking monetary damages proceed to trial.

### **JURISDICTION AND PARTIES**

1. Plaintiff Titan is a Nevada corporation, having its principal place of business at 5650 Greenwood Plaza Blvd., Suite 105, Greenwood Village, CO 80111.

2. Defendant National Cost, Inc. is a Florida corporation, doing business as National Tax Group ("National Tax"). National Tax has its principal place of business at 6801 Lake Worth Road, Suite 209, Greenacres, FL 33467.

3. Upon information and belief, Defendant Ferry is an individual residing in Florida.

4. At all times relevant to this action, Defendant Ferry has been National Tax's President.

5. Upon information and belief, Defendant Reynoso is an individual residing in Florida.

6. At all times relevant to this action, Defendant Reynoso has been National Tax's Director of Operations.

7. National Tax consented to submit to the personal and exclusive jurisdiction of this Court through the Licensing Agreement. **Exhibit A**, pp. 4-5.

8. The Court has personal jurisdiction over Defendants Ferry and Reynoso, who have engaged in business in Colorado and this action arises out of business that they have transacted in Colorado.

9. Venue is proper in this Court pursuant to the terms of the Licensing Agreement. *Id.*

#### ***Titan Manufacturing Solutions, Inc.***

10. Titan develops proprietary tax software solutions for, among other things, the R&D Tax Credit.

11. The R&D Tax Credit provides tax incentives for companies that undertake research and development efforts within the United States. The process is highly fact-intensive and requires extensive support for qualifying expenses.

12. Since 2005, Titan has provided R&D Tax Credit support to over 400 taxpayers nationwide.

13. Among other software solutions, Titan developed Titan Armor®, an online, web-based application and platform that captures the R&D Tax Credit.

14. Titan developed and refined those applications and platforms based on extensive experience before the Internal Revenue Service ("IRS"). Since the Fall of 2008, Titan has invested substantial time and resources to develop and modify those applications and platforms.

15. Aspects of Titan's applications and platforms are confidential and proprietary and are not known outside of Titan.

16. Titan has taken extensive precautions to protect this confidential and proprietary information including limiting access to production servers, restricting access to trade secrets to key employees, using role-based security for users, requiring unique user credentials, and password protecting all aspects of each application and platform.

17. As a further protection of its confidential and proprietary information, Titan requires all users to execute licensing and user agreements that include detailed provisions prohibiting the disclosure of confidential information, prohibit the redistribution or republication of any aspect of the applications or platform, prohibit attempts to create unauthorized access or derivative work, and provide the right to seek injunctive relief and attorneys' fees for their violation.

### ***The Licensing Agreement***

18. On or about January 23, 2018, Defendant Ferry contacted Titan to discuss engaging its services on behalf of National Tax.

19. On or about January 24, 2018 National Tax entered into the Titan Armor® Licensing Agreement, (the "Licensing Agreement"). A true and correct copy of the Licensing Agreement is attached hereto as **Exhibit A**.

20. Defendant Ferry executed the Licensing Agreement on behalf of National Tax. *Id.* at p. 5.

21. By executing the Licensing Agreement, National Tax and Defendant Ferry warranted that they understood, agreed to, and accepted the terms and conditions contained in the Licensing Agreement. *Id.* at p. 1

22. By executing the Licensing Agreement, Defendant Ferry represented that he had the authority to bind National Tax to the Licensing Agreement. *Id.*

23. The Licensing Agreement expressly provides that National Tax may not access Titan's applications and platform if it was a direct competitor of Titan, or for the express purpose of monitoring Titan's applications and platform's availability, performance, or functionality, or for any other benchmarking or competitive purpose. *Id.*



24. The Licensing Agreement limits use of Titan's applications and platform to individuals who are authorized to use the service, have been supplied a username and password by National Tax, and are utilizing the service on National Tax's behalf. *Id.*

25. The Licensing Agreement expressly prohibits the disclosure of confidential information, which it defines to include, without limitation, details of Titan's applications and platform functionality. *Id.*

26. The Licensing Agreement expressly provides that "Customer acknowledges and agrees that [Titan] represents that Titan owns and shall own all rights, title and interest in and to all intellectual property rights in the [online, web-based application and platform provided by Titan]." *Id.* at p. 2.

27. The Licensing Agreement expressly provides that National Tax is not granted any rights in developed materials other than those expressly set forth in the Licensing Agreement. *Id.*

28. The Licensing Agreement expressly provides that National Tax "shall not (and shall not allow any third party to) copy, modify, reproduce, distribute, republish, display, post or transmit in any form or by any means, create a derivative work of, reverse engineer, or decompile any aspect of [Titan's online, web-based application and platform], or otherwise attempt to create unauthorized access to [Titan's online, web-based application and platform] and/or modified versions of [Titan's online, web-based application and platform], including (without limitation) for the purpose of building a similar or competitive product or service." *Id.* at p. 3.

29. Under the express terms of the Licensing Agreement, "[r]edistribution or republication of any part of [Titan's online, web-based application and platform] or its content is prohibited." *Id.*

30. Under the express terms of the Licensing Agreement, National Tax acknowledged and agreed that in the event of its breach of any of the provisions set forth in Paragraphs 26-29, above, separate and apart from any other remedies it may have under the Licensing Agreement, "[Titan] may suffer irreparable injuries for which there would be no adequate remedy at law. Accordingly, in such event, [Titan] shall be entitled to seek a preliminary and final injunction without the necessity of posting any bond or undertaking in connection therewith to prevent any further breach of such provisions." *Id.*

31. The Licensing Agreement further provides that, "[i]n the event that [Titan] has reasonable grounds to believe that [National Tax] has violated this Agreement, has otherwise acted unlawfully, or [National Tax's] User(s) have caused immediate, material and ongoing harm to [Titan] or others through its use of [Titan's online, web-based application and platform], [Titan] may immediately terminate this Agreement and access to [Titan's online, web-based application and platform]" without notice to National Tax. *Id.*

32. Under the express terms of the Licensing Agreement, the terms and conditions of the Licensing Agreement are governed by the laws of the state of Colorado, without giving effect to its conflicts of law provisions. *Id.*

33. Under the express terms of the Licensing Agreement, "[i]n the event of any dispute, the prevailing party shall be entitled to recover reasonable costs and attorney's fees." *Id.*

34. Under the express terms of the Licensing Agreement, Titan and National Tax agreed to submit to the personal and exclusive jurisdiction of the courts located within the county of Arapahoe, Colorado. *Id.* at pp. 4-5.

35. By clicking the accept button on the Licensing Agreement, National Tax, through Defendant Lee Ferry, agreed to abide by all terms and conditions of the Licensing Agreement. *Id.* at p. 5.

### ***Titan Armor® Terms of Service***

36. Prior to their use of Titan's applications and platforms, Defendants Ferry and Reynoso accepted the Titan Armor® Terms of Service (the "User Terms of Service"), a copy of which is attached hereto as **Exhibit B**.

37. Under the express terms of the User Terms of Service, each user's "login may only be used by one person – a single login shared by multiple people is not permitted." **Exhibit B**, ¶ 3.

38. Under the express terms of the User Terms of Service, "User shall not license, rent, sell, lease, transfer, assign, distribute, display, host, outsource, disclose, or otherwise commercially exploit or make any aspect of the Service available to an unauthorized User of the Service, including but not limited to, 'mirroring' or 'framing' any part of the Service, or creating Internet links to the Service, which include log-in information, user names, passwords, and/or secure cookies." *Id.* at ¶ 8.

39. Under the express terms of the User Terms of Service, "User shall not (and shall not allow any third party to) copy, modify, reproduce, distribute, republish, display, post or transmit in any form or by any means, create a derivative work of, reverse engineer, or decompile any aspect of the Service, or otherwise attempt to create unauthorized access to the Service and/or modified versions of the Service, including (without limitation) for the purpose of building a similar or competitive product or service." *Id.* at ¶ 9.

### ***Defendants' Breach of the Licensing Agreement and User Terms of Service***

40. In or about February 2019, National Tax engaged Leigh Database Design to develop a Microsoft Access Database (the "National Tax Database") for use with National Tax's R&D Tax Credit work.

41. National Tax subsequently sent a series of at least five (5) Microsoft Word documents to Leigh Database Design by email with instructions for developing the National Tax Database.

42. Those five (5) Microsoft Word documents included screenshots of Titan's applications and platform.

43. Upon information and belief, Defendant Reynoso took the screenshots of Titan's applications and platform.

44. Those five (5) Microsoft Word documents also included links to various pages of Titan's application and platform.

45. Accessing the pages of Titan's applications and platform referenced in those links would have required Leigh Database Design to enter a username and password.

46. National Tax did not set up a separate user profile for Leigh Database Design.

47. Upon information and belief, Defendants Ferry and Reynoso, along with Grace Dolen, National Tax's Administrative Coordinator, each participated in furnishing information to Leigh Database Design to assist in preparing the National Tax Database.

48. Leigh Database Design partially developed the National Tax Database before terminating its engagement on or about May 16, 2019.

49. The National Tax Database contains various aspects derived from Titan's online, web-based platform including a nearly verbatim reproduction of Titan Armor's Task Library using Titan's developed lists of task codes, task types, and task descriptions.

50. Upon information and belief, National Tax has engaged additional software developers to assist in creating a platform derivative of Titan's application and platform, including developers outside of the United States.

### ***Titan's Request for Assurances***

51. Upon learning that National Tax had breached the Licensing Agreement and User Terms of Service by disclosing confidential information, reproducing and republishing various aspects of Titan's online, web-based applications and platforms, creating unauthorized access to Titan's online, web-based applications and platform, and attempting to create derivative work of and/or reverse engineer Titan's online, web-based applications and platform, Titan sought written assurances from National Tax that it was complying with the terms of the Licensing Agreement and User Terms of Service and that no aspects of Titan's online, web-based applications and platform had been shared with Leigh Database Design.

52. To date, National Tax has not provided such assurances.

53. On May 29, 2019, National Tax, through counsel, shared selections of the National Tax Database with Titan, confirming that the National Tax Database was derivative of and similar to Titan's applications and platform.

**FIRST CLAIM FOR RELIEF**  
**Breach of Contract – Injunctive Relief**  
**(Against Defendant National Tax)**

54. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

55. National Tax's conduct described herein directly violates and constitutes a breach of the terms of the Licensing Agreement.

56. In violation of the terms of the Licensing Agreement, National Tax copied, modified, reproduced, distributed, republished, displayed, posted, and/or transmitted portions of Titan's applications and platform including, without limitation, by emailing screenshots and links of Titan's applications and platform to Leigh Database Design.

57. In violation of the terms of the Licensing Agreement, National Tax attempted to create a derivative work of, reverse engineer, and/or decompile aspects of Titan's applications and platform by, among other actions, engaging Leigh Database Design to create a Microsoft Access application using aspects of Titan's applications and platform.

58. In violation of the terms of the Licensing Agreement, National Tax attempted to create unauthorized access to all aspects of Titan's applications and platform including, without limitation, by emailing links to Leigh Database Design referencing aspects of Titan's applications and platform that required a user name and passwords to access.

59. In violation of the terms of the Licensing Agreement, National Tax attempted to create modified versions of Titan's applications and platform including, without limitation, by emailing links to Leigh Database Design referencing aspects of Titan's application and platform.

60. In violation of the terms of the Licensing Agreement, National Tax disclosed Confidential Information (as defined in the Licensing Agreement) including, without limitation, details of Titan's applications and platform to others including, without limitation, Leigh Database Design.

61. As a result of National Tax's breaches of the Licensing Agreement, Titan has suffered real, immediate, and irreparable injury and will continue to so suffer in direct violation of its contractual rights unless National Tax is immediately restrained and permanently enjoined from such activity by Order of this Court.

62. Based on the facts described herein, Titan has demonstrated a reasonable probability of success on the merits of its claims, including its claim for Breach of Contract.

63. Based on the facts described herein, Titan has demonstrated a danger of real, immediate, and irreparable injury which may only be prevented by injunctive relief.

64. There is no plain, speedy, and adequate remedy at law.

65. The granting of a preliminary injunction will not disserve the public interest.

66. The balance of the equities favors the injunction.

67. The requested injunction will preserve the status quo on the merits.

68. Accordingly, Titan requests that National Tax be enjoined and restrained from continuing to violate the Licensing Agreement including, without limitation, disclosing any aspect of Titan's applications and platform's functionality and any other confidential information; copying, modifying, reproducing, distributing, republishing, displaying, posting, or transmitting in any form, any aspect of Titan's applications and platform; attempting to create derivative work of, reverse engineering, or decompiling any aspect of Titan's applications or platform; granting or attempting to create unauthorized access to Titan's applications or platform; and attempting to create unauthorized access to Titan's applications or platform.

**SECOND CLAIM FOR RELIEF**  
**Breach of Contract – Damages**  
**(Against Defendant National Tax)**

69. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

70. National Tax entered into the Licensing Agreement with Titan.

71. Titan has fully complied with the material terms of the Licensing Agreement.

72. In violation of the terms of the Licensing Agreement, National Tax copied, modified, reproduced, distributed, republished, displayed, posted, and/or transmitted portions of Titan's applications and platform including, without limitation, by emailing screenshots and links of Titan's applications and platform to Leigh Database Design.

73. In violation of the terms of the Licensing Agreement, National Tax attempted to create a derivative work of, reverse engineer, and/or decompile aspects of Titan's applications and platform by, among other actions, engaging Leigh Database Design to create a Microsoft Access application using aspects of Titan's applications and platform.

74. In violation of the terms of the Licensing Agreement, National Tax attempted to create unauthorized access to all aspects of Titan's applications and platform including, without limitation, by emailing links to Leigh Database Design referencing aspects of Titan's applications and platform that required a user name and passwords to access.

75. In violation of the terms of the Licensing Agreement, National Tax attempted to create modified versions of Titan's applications and platform including, without limitation, by emailing links to Leigh Database Design referencing aspects of Titan's application and platform.

76. In violation of the terms of the Licensing Agreement, National Tax disclosed Confidential Information (as defined in the Licensing Agreement) including, without limitation, details of Titan's applications and platform to others including, without limitation, Leigh Database Design.

77. As a direct and proximate result of National Tax's breaches of the Licensing Agreement, and in addition to the irreparable harm discussed in Titan's claim for injunctive relief, Titan has suffered additional damages, including monetary damages reflecting lost profits that it would have made if National Tax had not breached the terms of the Licensing Agreement, and loss of customer good will and future business.

78. Titan is entitled to recover monetary damages as a result of National Tax's breaches of the Licensing Agreement.

79. Titan is entitled to recover reasonable costs and attorneys' fees pursuant to the terms of the Licensing Agreement.

**THIRD CLAIM FOR RELIEF**  
**Breach of Contract – Injunctive Relief**  
**(Against Defendants Ferry and Reynoso)**

80. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

81. Defendants Ferry and Reynoso's conduct described herein directly violates and constitutes a breach of the terms of the User Terms of Service.

82. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso copied, modified, reproduced, distributed, republished, displayed, posted, and/or transmitted portions of Titan's applications and platform including, without limitation, by emailing screenshots and links of Titan's applications and platform to Leigh Database Design.

83. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso attempted to create a derivative work of, reverse engineer, and/or decompile aspects of Titan's applications and platform by, among other actions, engaging Leigh Database Design to create a Microsoft Access application using aspects of Titan's applications and platform.

84. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso attempted to create unauthorized access to all aspects of Titan's applications and platform including, without limitation, by emailing links to Leigh Database Design referencing aspects of Titan's applications and platform that required a user name and passwords to access.

85. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso attempted to share a single login among more than one person.

86. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso attempted to create modified versions of Titan's applications and platform including, without limitation, by emailing links to Leigh Database Design referencing aspects of Titan's application and platform.

87. As a result of Defendant Ferry and Reynoso's breaches of the User Terms of Service, Titan has suffered real, immediate, and irreparable injury and will continue to so suffer in direct violation of its contractual rights unless Defendants Ferry and Reynoso are immediately restrained and permanently enjoined from such activity by Order of this Court.

88. Based on the facts described herein, Titan has demonstrated a reasonable probability of success on the merits of its claims, including its claim for Breach of Contract.

89. Based on the facts described herein, Titan has demonstrated a danger of real, immediate, and irreparable injury which may only be prevented by injunctive relief.

90. There is no plain, speedy, and adequate remedy at law.

91. The granting of a preliminary injunction will not disserve the public interest.

92. The balance of the equities favors the injunction.

93. The requested injunction will preserve the status quo on the merits.

94. Accordingly, Titan requests that Defendants Ferry and Reynoso be enjoined and restrained from continuing to violate the User Terms of Service including, without limitation, copying, modifying, reproducing, distributing, republishing, displaying, posting, or transmitting in any form, any aspect of Titan's applications and platform; attempting to create derivative work of, reverse engineering, or decompiling any aspect of Titan's applications or platform; granting or attempting to create unauthorized access to Titan's applications or platform; attempting to create unauthorized access to Titan's applications or platform; and sharing login information with unauthorized users.

**FOURTH CLAIM FOR RELIEF**  
**Breach of Contract – Damages**  
**(Against Defendants Ferry and Reynoso)**

95. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

96. Defendants Ferry and Reynoso entered into the User Terms of Service with Titan.

97. Titan has fully complied with the material terms of the User Terms of Service.

98. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso copied, modified, reproduced, distributed, republished, displayed, posted, and/or



transmitted portions of Titan's applications and platform including, without limitation, by emailing screenshots and links of Titan's applications and platform to Leigh Database Design.

99. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso attempted to create a derivative work of, reverse engineer, and/or decompile aspects of Titan's applications and platform by, among other actions, engaging Leigh Database Design to create a Microsoft Access application using aspects of Titan's applications and platform.

100. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso attempted to create unauthorized access to all aspects of Titan's applications and platform including, without limitation, by emailing links to Leigh Database Design referencing aspects of Titan's applications and platform that required a user name and passwords to access.

101. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso attempted to share a single login among more than one person.

102. In violation of the terms of the User Terms of Service, Defendants Ferry and Reynoso attempted to create modified versions of Titan's applications and platform including, without limitation, by emailing links to Leigh Database Design referencing aspects of Titan's application and platform.

103. As a direct and proximate result of Defendant Ferry and Reynoso's breaches of the User Terms of Service, and in addition to the irreparable harm discussed in Titan's claim for injunctive relief, Titan has suffered additional damages, including monetary damages reflecting lost profits that it would have made if Defendants Ferry and Reynoso had not breached the terms of the User Terms of Service, and loss of customer good will and future business.

104. Titan is entitled to recover monetary damages as a result of Defendant Ferry and Reynoso's breaches of the User Terms of Service.

#### **FIFTH CLAIM FOR RELIEF**

#### **Breach of the Implied Covenant of Good Faith and Fair Dealing (Against Defendant National Tax)**

105. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

106. National Tax expressly promised Titan and owed as an implied covenant, an obligation of good faith and fair dealing.

107. National Tax had an obligation to perform the terms of the Licensing Agreement in good faith, and National Tax had a concomitant duty to refrain from doing things that would deprive Titan of the reasonable and mutually anticipant benefits of that agreement.



108. National Tax's course of conduct towards Titan was not consistent with the agreed common purpose or reasonable expectations of the parties, constituted bad faith, and was in breach of the implied covenant of good faith and fair dealing.

109. National Tax's conduct deprived Titan of its reasonable expectations under the Licensing Agreement, as described herein.

110. Defendants' breach of the implied covenant of good faith and fair dealing caused Titan losses and consequential damages in amounts to be proven at trial.

#### **SIXTH CLAIM FOR RELIEF**

##### **Breach of the Implied Covenant of Good Faith and Fair Dealing (Against Defendants Ferry and Reynoso)**

111. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

112. Defendants Ferry and Reynoso expressly promised Titan and owed as an implied covenant, an obligation of good faith and fair dealing.

113. Defendants Ferry and Reynoso had an obligation to perform the terms of the User Terms of Service in good faith, and Defendants Ferry and Reynoso had a concomitant duty to refrain from doing things that would deprive Titan of the reasonable and mutually anticipant benefits of that agreement.

114. Defendant Ferry and Reynoso's course of conduct towards Titan was not consistent with the agreed common purpose or reasonable expectations of the parties, constituted bad faith, and was in breach of the implied covenant of good faith and fair dealing.

115. Defendant Ferry and Reynoso's conduct deprived Titan of its reasonable expectations under the User Terms of Services, as described herein.

116. Defendants Ferry and Reynoso's breach of the implied covenant of good faith and fair dealing caused Titan losses and consequential damages in amounts to be proven at trial.

#### **SEVENTH CLAIM FOR RELIEF**

##### **Misappropriation of Trade Secrets – Injunctive Relief (Against Defendant National Tax)**

117. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

118. National Tax's conduct described herein directly violates and constitutes misappropriation of trade secrets.

119. Certain aspects of Titan's applications and platform are trade secrets and subject to protection under the Colorado Uniform Trade Secrets Act ("CUTSA"), C.R.S. § 7-74-101 *et seq.*

120. To the extent that these trade secrets were disclosed to National Tax, they were subject to express and implied restrictions of nondisclosure and nonuse, including without limitation, the terms and conditions of the Licensing Agreement.

121. In violation of those restrictions of nondisclosure and nonuse, National Tax used Titan's trade secrets by attempting to reverse engineer Titan's applications and platform and attempting to create a similar product or service.

122. In further violation of those restrictions of nondisclosure and nonuse, National Tax disclosed Titan's trade secrets to third parties, including without limitation Leigh Database Design.

123. Titan's trade secrets are not known outside of Titan and Titan has taken considerable precautions to protect this information. Titan derives independent economic value from the information not being generally known to the public or to other persons who could obtain economic value from its disclosure or use. Titan has invested substantial time and resources in developing this information, the information has value to Titan, and it would be difficult for competitors to acquire and duplicate this information without a similar investment of time and resources.

124. Titan has taken more than adequate measures under the circumstances to maintain the secrecy of this information, including limiting access to production servers, restricting access to trade secrets to key employees, employing role-based security for users, requiring unique user credentials, and password protecting all aspects of each application and platform. Titan also requires users to execute licensing and user agreements before use that include detailed provisions prohibiting the disclosure of confidential information (expressly defined in the agreement to include details of the applications and platform's functionality), prohibiting any redistribution or republication of any aspect of the applications or platform (including without limitation, copying, modifying, reproducing, distributing, republishing, displaying, posting, or transmitting any aspect of the applications or platform), prohibiting any attempts to create unauthorized access or derivative work, and providing for the right to seek, among other remedies, injunctive relief for the violation of these provisions.

125. Titan expressly advised National Tax, through the Licensing Agreement, that such information is highly sensitive, confidential and proprietary information only to be used for purposes consistent with the terms of the Licensing Agreement.

126. Defendants' conduct constitutes an actual and threatened misappropriation and misuse of Titan's trade secret information in violation of CUTSA.

127. As a result of National Tax's misappropriation of Titan's trade secrets, Titan has suffered real, immediate, and irreparable injury and will continue to so suffer unless National Tax is immediately restrained and permanently enjoined from such activity by Order of this Court.

128. Based on the facts described herein, Titan has demonstrated a reasonable probability of success on the merits of its claims, including its claim for misappropriation of trade secrets.

129. Based on the facts described herein, Titan has demonstrated a danger of real, immediate, and irreparable injury which may only be prevented by injunctive relief.

130. There is no plain, speedy, and adequate remedy at law.

131. The granting of a preliminary injunction will not disserve the public interest.

132. The balance of the equities favors the injunction.

133. The requested injunction will preserve the status quo on the merits.

134. Accordingly, Titan requests that National Tax be enjoined and restrained from further misappropriation of Titan's trade secrets including, without limitation, disclosing any aspect of Titan's applications and platform's functionality and any other confidential information; copying, modifying, reproducing, distributing, republishing, displaying, posting, or transmitting in any form, any aspect of Titan's applications and platform; attempting to create derivative work of, reverse engineering, or decompiling any aspect of Titan's applications or platform; granting or attempting to create unauthorized access to Titan's applications or platform; and attempting to create unauthorized access to Titan's applications or platform.

135. Pursuant to the Colorado Uniform Trade Secrets Act, C.R.S. § 7-74-101 *et seq.*, among other relief, Titan is entitled to preliminary and permanent injunctive relief and attorneys' fees for the misappropriation of its trade secrets.

**EIGHTH CLAIM FOR RELIEF**  
**Misappropriation of Trade Secrets - Damages**  
**(Against Defendant National Tax)**

136. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

137. Certain aspects of Titan's applications and platform are trade secrets and subject to protection under the CUTSA.

138. To the extent that these trade secrets were disclosed to National Tax, they were subject to express and implied restrictions of nondisclosure and nonuse, including without limitation, the terms and conditions of the Licensing Agreement.

139. In violation of those restrictions of nondisclosure and nonuse, National Tax used Titan's trade secrets by attempting to reverse engineer Titan's applications and platform and attempting to create a similar product or service.

140. In further violation of those restrictions of nondisclosure and nonuse, National Tax disclosed Titan's trade secrets to third parties, including without limitation Leigh Database Design.

141. Titan's trade secrets are not known outside of Titan and Titan has taken considerable precautions to protect this information. Titan derives independent economic value from the information not being generally known to the public or to other persons who could obtain economic value from its disclosure or use. Titan has invested substantial time and resources in developing this information, the information has value to Titan, and it would be difficult for competitors to acquire and duplicate this information without a similar investment of time and resources.

142. Titan has taken more than adequate measures under the circumstances to maintain the secrecy of this information, including limiting access to production servers, restricting access to trade secrets to key employees, employing role-based security for users, requiring unique user credentials, and password protecting all aspects of each application and platform. Titan also requires users to execute licensing and user agreements before use that include detailed provisions prohibiting the disclosure of confidential information (expressly defined in the Licensing Agreement to include details of the applications and platform's functionality), prohibiting any redistribution or republication of any aspect of the applications or platform (including without limitation, copying, modifying, reproducing, distributing, republishing, displaying, posting, or transmitting any aspect of the applications or platform), prohibiting any attempts to create unauthorized access or derivative work, and providing for the right to seek, among other remedies, injunctive relief for the violation of these provisions.

143. Titan expressly advised National Tax, through the Licensing Agreement, that such information is highly sensitive, confidential and proprietary information only to be used for purposes consistent with the terms of the Licensing Agreement.

144. Defendants' conduct constitutes an actual and threatened misappropriation and misuse of Titan's trade secret information in violation of the CUTSA.

145. Without permission or authorization—and, in fact, in direct violation of the Licensing Agreement—National Tax misappropriated Titan's trade secrets and is unlawfully using them.

146. National Tax wrongfully obtained and has improperly used Titan's trade secrets and has (or will) profit thereby.

147. National Tax's misappropriation of Titan's trade secrets as alleged herein caused Titan damage.

148. Pursuant to the Colorado Uniform Trade Secrets Act, C.R.S. § 7-74-101 *et seq.*, Titan is entitled to preliminary and permanent injunctive relief, damages in an amount to be proven at trial, treble damages, and attorneys' fees for the misappropriation of its trade secrets.

**NINTH CLAIM FOR RELIEF**  
**Conversion – Injunctive Relief**  
**(Against Defendant National Tax)**

149. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

150. National Tax's conduct described above constitutes conversion. By the actions described above, including National Tax's use and disclosure of aspects of Titan's applications and platform, National Tax has willfully and without lawful justification appropriated Titan's property as National Tax's sole property without the consent of Titan.

151. National Tax's conduct described above constitutes an unauthorized act of ownership over Titan's property. National Tax refused Titan's demands to cease this conduct.

152. As a result of National Tax's conversion of its intellectual property, Titan has suffered real, immediate, and irreparable injury and will continue to so suffer in direct violation of its contractual rights unless National Tax is immediately restrained and permanently enjoined from such activity by Order of this Court.

153. Based on the facts described herein, Titan has demonstrated a reasonable probability of success on the merits of its claims, including its claim for conversion.

154. Based on the facts described herein, Titan has demonstrated a danger of real, immediate, and irreparable injury which may only be prevented by injunctive relief.

155. There is no plain, speedy, and adequate remedy at law.

156. The granting of a preliminary injunction will not disserve the public interest.

157. The balance of the equities favors the injunction.

158. The requested injunction will preserve the status quo on the merits.

159. Accordingly, Titan requests that National Tax be enjoined and restrained from continuing to violate the Licensing Agreement including, without limitation, disclosing any aspect of Titan's applications and platform's functionality and any other confidential information; copying, modifying, reproducing, distributing, republishing, displaying, posting, or transmitting in any form, any aspect of Titan's applications and platform; attempting to create derivative work of, reverse engineering, or decompiling any aspect of Titan's applications or platform; granting or attempting to create unauthorized access to Titan's applications or platform; and attempting to create unauthorized access to Titan's applications or platform.

**TENTH CLAIM FOR RELIEF**  
**Conversion – Damages**  
**(Against Defendant National Tax)**

160. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

161. By the actions described above, including National Tax's use and disclosure of aspects of Titan's applications and platform, National Tax has willfully and without lawful justification appropriated Titan's property as National Tax's sole property without the consent of Titan.

162. National Tax's conduct described above constitutes an unauthorized act of ownership over Titan's property. National Tax refused Titan's demands to cease this conduct.

163. In addition to the incalculable damages for which injunctive relief is sought, by reason of National Tax's continued acts of conversion and misappropriation, Titan has also suffered certain other calculable injury and damages including, but not limited to, lost profits in an amount to be determined by the evidence at trial.

164. National Tax's conduct is willful, malicious, grossly negligent, oppressive, intentional, and unprivileged.

**ELEVENTH CLAIM FOR RELIEF**  
**Civil Conspiracy**  
**(Against Defendants Ferry and Reynoso)**

165. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

166. Defendants Ferry and Reynoso agreed, by words or conduct, to unlawfully misappropriate Titan's trade secrets and convert Titan's intellectual property by violating the terms of the Licensing Agreement and User Terms of Service.

167. Defendants Ferry and Reynoso agreed, by words or conduct, to misappropriate Titan's trade secrets and violate the Licensing Agreement and User Terms of Service.

168. To accomplish this goal, Defendants Ferry and Reynoso disclosed confidential information, unlawfully shared information regarding Titan's applications and platform, granted third parties unauthorized access to Titan's applications and platform, and engaged third parties to reverse engineer and create derivative work of Titan's applications and platform.

169. Defendants Ferry and Reynoso formed an operated a malicious combination with a common purpose and object to injure Titan by performing unlawful acts in violation of Titan's contractual and common law rights as described above.

170. Defendants Ferry and Reynoso's conduct described above was without justification or privilege.

171. Defendants Ferry and Reynoso's conduct, as described above, was taken for their individual advantage.

172. Defendants Ferry and Reynoso engaged in overt unlawful acts and conduct in violation of Titan's rights, causing harm to Titan.

173. By virtue of the formation and operation of this conspiracy by Defendants Ferry and Reynoso and as a consequence of the wrongful acts described herein and the harm and injury caused to Titan, each of the co-conspirators, as participants in this conspiracy, are liable as joint tortfeasors.

174. As a result of Defendants Ferry and Reynoso's unlawful conduct, Titan has suffered and continues to suffer damages in an amount to be proven at trial as well as irreparable harm.

175. Titan's damages were caused by the Defendants Ferry and Reynoso's actions to accomplish their unlawful goals.

#### **TWELFTH CLAIM FOR RELIEF**

##### **Unjust Enrichment (Against All Defendants)**

176. Titan incorporates all prior allegations of this Complaint as though fully set forth herein.

177. Defendants' actions described above including, without limitation, breach of the Licensing Agreement, disclosure of confidential information, distribution of aspects of Titan's applications and platform, attempts to create derivative work of and/or reverse engineer the functionality of Titan's applications and platform, attempts to create unauthorized access to Titan's applications and platform, the breach of the implied duty of good faith and fair dealing, the conversion of Titan's intellectual property, and the misappropriation of Titan's trade secrets have unjustly enriched Defendants to the detriment of Titan.

178. Equity and good conscience require restitution to Titan.

#### **Notice of Intent Pursuant to C.R.S. § 13-21-102(1.5)(a)**

Titan gives notice that it believes the actions and conduct of Defendants as alleged and inferred in this Verified Complaint were done willfully and wantonly without regard to its rights and safety. Thus, Defendants will amend their claims to seek assessment of exemplary damages as permitted by law.

**PRAYER FOR RELIEF**

**WHEREFORE**, Titan respectfully requests judgment against the Defendants upon each and all of the claims for relief asserted herein, including and without limitation:

1. On its First, Third, Seventh, and Ninth Claims for Relief, entry of preliminary and permanent injunctions prohibiting Defendants' unlawful breach of the Licensing Agreement and User Terms of Service and misappropriation of trade secrets until a full resolution of this action and restraining and enjoining each Defendant from further:
  - a. Disclosure of confidential information including, without limitation, any aspect of Titan's applications and platform's functionality;
  - b. Copying, modifying, reproducing, distributing, republishing, displaying, posting, or transmitting in any form, any aspect of Titan's applications and platform;
  - c. Attempting to create derivative work of, reverse engineering, or decompiling any aspect of Titan's applications or platform;
  - d. Granting or attempting to create unauthorized access to Titan's applications or platform;
  - e. Sharing user login credentials with unauthorized users; and
  - f. Attempting to create unauthorized access to Titan's applications or platform.
2. On its Second, Fourth, Fifth, Sixth, Eighth, Tenth, Eleventh, and Twelfth Claims for Relief, a monetary judgment for all compensatory and consequential damages;
3. An award of Titan's reasonable costs, expenses, and attorneys' fees incurred in this action;
4. Pre- and post-judgment interest in accordance with the law; and
5. Such other and further relief as this Court deems just and proper under the circumstances.

Respectfully submitted this 10th day of June, 2019.

**AKERMAN LLP**

s/ Christopher J. Eby

Colin L. Barnacle, # 33657

Christopher J. Eby, # 43806

Ashley E. Calhoun, #44510

Plaintiff's Address:

5650 Greenwood Plaza Blvd, Suite 105  
Greenwood Village, CO 80111



**VERIFICATION**

I, Brian Lefever, state that I have read the foregoing **VERIFIED COMPLAINT** and I swear that the statements contained herein are true and correct to the best of my knowledge and belief.

  
Brian Lefever, VP of Operations  
Titan Manufacturing Solutions, Inc.

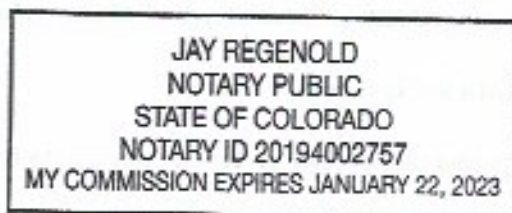
STATE OF COLORADO )  
COUNTY OF Arapahoe ) ss.  
)

Subscribed and sworn to before me this 7 day of June, 2019.

Witness my hand and official seal.

My commission expires: January 22, 2023

  
Notary Public



(Last modified Apr 26, 2019)



## ARMOR® LICENSE

# AGREEMENT

BY EXECUTING this License Agreement, you are warranting that you understand, agree to, and accept these Terms and Conditions contained herein (the "Terms"), and you represent that you have the authority to bind your Company to this Agreement. You may not access the Service if you are a direct competitor of TITAN, or for purposes of monitoring the Service's availability, performance or functionality, or for any other benchmarking or competitive purposes.

### Definitions

The term "TITAN" means TITAN Manufacturing Solutions, Inc, its affiliated companies, employees, agents, licensors and contractors. The term "Service" means the online, web-based application and platform provided by TITAN via <http://www.titanarmor.com> and/or other associated web pages (the "Site"). The term "Customer" means the Company that has executed this Armor® License Agreement with TITAN. The term "User" means any individual who is authorized to use the Service, who has been supplied a username and password by his/her Company (or by TITAN at such Company's request), and who is utilizing the Service on the Company's behalf.

### Privacy Statement

TITAN is committed to protecting Customer privacy. TITAN will not sell, share, or rent Customer's personal information to any third party. Like most interactive web sites, the Service uses cookies to enable TITAN to retrieve Customer details for each visit. Cookies are used in some areas of the Service to enable the functionality of these areas. TITAN uses IP addresses to analyze trends, administer the Site, track Customer's movement, gather broad demographic information for aggregate use, and for systems administration, detecting usage patterns and troubleshooting purposes. IP addresses are not linked to personally identifiable information.

The Service may provide links to other World Wide Web sites or resources. TITAN is not responsible for the privacy practices, or content, of these sites. Therefore, Customer agrees that TITAN is not responsible for the availability of such external sites or resources, nor liable for any content, advertising, products, or other materials on or available from such sites or resources. TITAN will not accept any responsibility for any loss or damage in whatever manner, howsoever caused, resulting from Customer's disclosure to third parties of personal information.

### Confidentiality

For purposes of this Agreement, confidential information shall include details of the Service's functionality, Customer's data, and any other information that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure ("Confidential Information"). Confidential Information shall not include information which: (1) is known publicly; (2) is generally known in the industry before disclosure; (3) has become known publicly, without fault of the recipient, subsequent to disclosure by the disclosing party; or (4) was independently developed by the recipient.

Each party agrees: (a) to keep confidential all Confidential Information disclosed to it by the other party or by a third-party; (b) not to use the Confidential Information of the other party except to the extent necessary to perform its obligations or exercise rights under this Agreement; (c) to protect the confidentiality thereof in the same manner as it protects the confidentiality of similar information and data of its own, but in no event shall such manner of protection be performed with less than reasonable care; and (d) to make Confidential Information available to authorized persons only on a "need to know" basis. Either party may disclose Confidential Information on a need-to-know basis to its contractors who have executed written agreements requiring them to maintain such information in strict confidence and use it only to facilitate the performance of their services in connection with the performance of this Agreement. Notwithstanding the foregoing, this Agreement will not prohibit the disclosure of Confidential Information to the extent that such disclosure is required by law or order of a court or other governmental authority or regulation.

Without limiting the above, TITAN and Customer shall maintain appropriate administrative, physical, and technical safeguards for protection of the security, confidentiality and integrity of the Confidential Information. Customer is responsible for the confidentiality and use of its User's usernames, passwords and data. Customer agrees to immediately notify TITAN if Customer becomes aware of any loss or theft or unauthorized use of this information. Customer is also responsible for all electronic communications, including those containing

business information, Customer data, and all other data of any kind contained within emails or otherwise entered electronically through the Service.

### **Term of the Agreement**

The term of this Agreement shall be month-to-month, corresponding with the day Customer provisions the Service with a credit card (the Effective Date). At any time, Customer may terminate the Service via email notification to TITAN. No refunds for partial months' access are permitted, and amounts paid for the Service are not refundable. Therefore, the Service will be terminated on the next Effective Date corresponding to the notice of termination.

The monthly fee for the Service is as follows:

- 1-2 Users: \$95/month
- 3-10 Users: \$195/month
- 11-25 Users, and/or API interface: \$295/month
- each additional 1-25 Users: an additional \$100/month,

Customer agrees to additional charges, which will take effect on Customer's next Effective Date.

### **Availability**

TITAN commits to provide 99.5% uptime with respect to Customer's Service, excluding regularly scheduled maintenance times. TITAN hereby provides notice that every Saturday night 10:00pm - 10:20pm Pacific Time is reserved for routine scheduled maintenance for use as needed. TITAN, in its sole discretion, may take the Service down for unscheduled maintenance and, in that event, will attempt to notify Customer in advance in accordance with the Notice section set forth below. Such unscheduled maintenance will be counted against the uptime commitment.

TITAN does not warrant that the Service will be uninterrupted, timely or error free, although it is provided to the best ability. TITAN shall not be liable for any failure to provide Service which is due to an event beyond TITAN's reasonable control including but not limited to any Act of God, terrorism, war, Political insurrection, insurrection, riot, civil unrest, act of civil or military authority, uprising, earthquake, flood or any other natural or manmade eventuality outside of TITAN's control, which causes downtime of the Service, nor which could have been reasonably foreseen.

Customer agrees that TITAN's system logs and other records shall be used for calculating any service level events. TITAN currently limits the amount of database storage to 10GB. Any Customer using database storage in excess of this limit will be charged additional fees. If Customer's bandwidth usage exceeds 300 MB/month, or significantly exceeds the average bandwidth usage (as determined solely by TITAN) of other Armor® Customers, TITAN reserves the right to immediately disable Customer's account or throttle Customer's file hosting until Customer can reduce its bandwidth consumption.

### **Third-Party Hardware and Software**

Customer agrees to use third party software necessary for accessing the Service, including, but not limited to, "browser" software that supports a data security protocol compatible with the protocol used by the Service. Customer understands that TITAN also uses third party vendors and hosting partners to provide the necessary hardware, software, networking, storage, and related technology required to run the Service. Customer understands that the technical processing and transmission of the Service, including the data, may involve (a) transmissions over various networks; and (b) changes to conform and adapt to technical requirements of connecting networks or devices.

TITAN does not guarantee compatibility with any third party hardware or software, and TITAN shall not be responsible for any changes or new development in third-party tools which might interrupt Customer's current use or interaction with the Service. In addition, TITAN is not responsible for any compromise of data transmitted across the Internet, computer networks or other telecommunications facilities which are not owned or operated by TITAN. TITAN is not responsible for any electronic communications and/or Customer data which are delayed, lost, altered, intercepted or stored without authorization during the transmission of any data whatsoever.

### **Rights in Developed Materials**

Customer acknowledges and agrees that TITAN represents that Titan owns and shall own all rights, title and interest in and to all intellectual property rights in the Service. Customer understands and agrees that any suggestions, enhancement requests, feedback or recommendations provided to TITAN regarding the Service, will be treated by TITAN as non-confidential, and may be used by TITAN for any purpose without acknowledgment or compensation to Customer. No rights are granted to Customer hereunder other than as expressly set forth herein. TITAN shall have a royalty-free, worldwide, transferable, sublicenseable, irrevocable, perpetual right to use or incorporate into the Service any suggestions, enhancement requests, recommendations or other feedback provided by Customer or its Users, relating to the operation of the Service.



The TITAN Armor® logo is a registered trademark of TITAN in the United States. TITAN Armor®, the Armor® logo, and other TITAN service marks, logos and product and service names are marks of TITAN (the "TITAN Marks"). Customer agrees not to display or use the TITAN Marks in any manner without TITAN's express prior written permission.

Customer shall not (and shall not allow any third party to) copy, modify, reproduce, distribute, republish, display, post or transmit in any form or by any means, create a derivative work of, reverse engineer, or decompile any aspect of the Service, or otherwise attempt to create unauthorized access to the Service and/or modified versions of the Service, including (without limitation) for the purpose of building a similar or competitive product or service. Redistribution or republication of any part of the Service or its content is prohibited.

Notwithstanding anything contained herein to the contrary, Customer acknowledges and agrees that in the event of any breach of any of the provisions of the three (3) immediately preceding paragraphs, TITAN may suffer irreparable injuries for which there would be no adequate remedy at law. Accordingly, in such event, TITAN shall be entitled to seek a preliminary and final injunction without the necessity of posting any bond or undertaking in connection therewith to prevent any further breach of such provisions. Such a remedy is separate and apart from any other remedy TITAN may have under this Agreement.

### **Ownership of Data**

Subject to the terms of this Agreement, TITAN agrees that, as between Customer and TITAN, Customer's data shall at all times be considered the property of Customer. Customer exclusively owns all rights, title and interest in and to all of its data. TITAN may, but has no obligation to, remove data containing content that TITAN determines in its sole discretion are unlawful, offensive, threatening, libelous, defamatory, pornographic, obscene or otherwise objectionable. TITAN shall not access Customer's data except to provide the customer service or to address technical problems.

Customer understands and agrees that it is TITAN's practice to make tape backup copies of Customer's data. Customer acknowledges and agrees that TITAN may store and maintain such data. Subject to these Terms, Customer grants TITAN a limited non-exclusive non-transferable license to copy, store, record, transmit, maintain, display, view, print, or otherwise use Customer's data to the extent necessary to provide the Service to Customer. Customer agrees that this license to store and maintain Customer's data shall survive the termination of Customer's access to the Service for approximately one year for the sole purpose of storing backup Customer data at TITAN's offsite storage facility.

### **Termination**

In the event that TITAN has reasonable grounds to believe that Customer has violated this Agreement, has otherwise acted unlawfully, or Customer's User(s) have caused immediate, material and ongoing harm to TITAN or others through its use of the Service, TITAN may immediately terminate this Agreement and access to the Service. Customer acknowledges that termination may be effected without notice to Customer. Customer agrees that TITAN shall not be liable to Customer, or to any third party, for terminating Customer's access to the Service in conformance with this Section. Upon termination of the Service, Customer shall have no rights to continue use of the Service, but all of these Terms shall survive any termination of the Service.

TITAN reserves the right to suspend Customer's access to the Service for which any payment for the Service is due but unpaid. Customer agrees that TITAN shall not be liable for any suspension of the Service resulting from nonpayment of fees.

In the event that the Service is terminated, Customer will have until the end of the paid billing cycle to download/backup Customer's data from within the Service. After a 90-day period, Customer agrees that TITAN may delete Customer's data.

Failure of TITAN to enforce any of the provisions set out in these Terms, or failure to exercise any option to terminate, shall not be construed as waiver of such provisions and shall not affect the validity of these Terms or any part thereof, or the right thereafter to enforce each and every provision.

### **Warranties and Disclaimers**

TITAN warrants during the term of this Agreement that TITAN will use commercially reasonable efforts to safeguard and accurately maintain Customer data, utilizing at a minimum industry standard security and backup procedures. In the event of a breach of this provision, TITAN will use commercially reasonable efforts to correct or restore Customer's data as quickly as possible.

The Service is provided "as is" and "as available" without warranties of any kind either express or implied.

Customer understands and agrees that it uses the Service at its own discretion and risk and that it will be solely responsible for any damages to its computer system or loss of data that results from use of the Service.

EXCEPT AS STATED ABOVE, TITAN DOES NOT REPRESENT THAT CUSTOMER'S USE OF THE SERVICE WILL BE SECURE, TIMELY, UNINTERRUPTED OR ERROR-FREE OR THAT THE SERVICE WILL MEET CUSTOMER'S REQUIREMENTS OR THAT ALL ERRORS IN THE SERVICE AND/OR DOCUMENTATION WILL BE CORRECTED OR

THAT THE SYSTEM THAT MAKES THE SERVICE AVAILABLE WILL BE FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS. THE WARRANTIES STATED IN THIS SECTION ARE THE SOLE AND EXCLUSIVE WARRANTIES OFFERED BY TITAN. THERE ARE NO OTHER WARRANTIES OR CONDITIONS, EXPRESS OR IMPLIED, STATUTORY OR OTHERWISE, INCLUDING WITHOUT LIMITATION, THOSE OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE AND NON-INFRINGEMENT OF PROPRIETARY RIGHTS.

#### **Limitation of Liability**

TITAN shall not be liable for any direct, special, incidental, consequential, punitive, reliance, or exemplary damages, or indirect damages of any type or kind that result from Customer's use of (or its inability to use) the Service, unauthorized access to or alteration of Customer's transmissions or data, any other matter relating to the Service, TITAN's breach of warranty, negligence, tort, or any other legal cause of action arising from or in connection with these Terms, even if TITAN has been advised of the possibility of such damages. In no event will TITAN's total liability for all damages, losses, and causes of action arising out of or relating to the use of the Service exceed the amount paid by Customer, if any, for the Service during the twelve (12) months immediately preceding the day the act or omission occurred that gave rise to Customer's claim.

Customer agrees that the consideration which TITAN is charging hereunder for the Service does not include consideration for assumption by TITAN of the risk of Customer's incidental or consequential damages. The essential purpose of this provision is to limit TITAN's potential liability arising from use of the Service. The parties acknowledge that the limitations set forth in this Section are integral to the amount of fees charged in connection with the license of the Service and that, were TITAN to assume any further liability other than as set forth herein, such fees would of necessity be set substantially higher. Customer agrees that TITAN shall not be liable for any modification of the Service, including price change, suspension or discontinuance of the Service.

#### **Indemnification; Hold Harmless**

By using the Service, Customer hereby indemnifies TITAN against any loss or damage, in whatever manner, howsoever caused. Without limiting the generality of the foregoing, Customer will indemnify, defend (at TITAN's option and election) and hold TITAN harmless from and against any claims, actions, proceedings, losses, damages and liabilities, including attorneys' fees (of attorneys selected by TITAN), arising out of or related to Customer's violation of any of these Terms. No settlement shall be entered into without TITAN's consent. TITAN reserves the right, at Customer's cost and expense, to assume control of the defense and/or settlement of any matter for which Customer is required to indemnify TITAN and Customer agrees to provide TITAN with full cooperation in connection therewith.

TITAN will indemnify, defend and hold Customer harmless from and against any and all costs, liabilities, losses, and expenses (including, but not limited to, reasonable attorneys' fees) arising out of or in connection with a claim, suit, action, or proceeding brought by any third party against Customer which arise out of or result from TITAN's violations of any of these Terms; provided that Customer (a) promptly gives TITAN notice of the claim, suit, action, or proceeding; (b) gives TITAN sole control of the defense and related settlement negotiations; and (c) provides TITAN with all reasonably available information and assistance necessary to perform TITAN's obligations under this paragraph.

EXCEPT AS STATED ABOVE, TITAN DOES NOT PROVIDE ANY INDEMNIFICATION OR DEFENSE OF ANY KIND TO CUSTOMER FOR ITS OR ANY THIRD PARTY CLAIMS, ACTIONS, PROCEEDINGS, LOSSES, DAMAGES OR LIABILITIES ARISING OUT OF OR RELATED TO THE SERVICE.

#### **Notification of Changes**

TITAN reserves the right to change these Terms, including pricing for the Service, from time to time as it sees fit. If there are any changes to these Terms, TITAN will post notice of such changes to the Site. Customer is therefore advised to re-read this statement on a regular basis. If Customer does not agree to any of such changes, Customer shall have the right to terminate the Service by delivering email notice thereof to TITAN within thirty (30) days after the subject change(s) takes effect. If Customer does not timely deliver such written notice, then Customer shall have waived its right of termination with regard to the subject changes, and Customer's continued use of the site shall conclusively confirm its acceptance of any such changes.

#### **Relationship of the Parties; Jurisdiction; Attorney Fees**

The parties are independent entities. These Terms do not create a partnership, franchise, joint venture, agency, fiduciary, employment or any other legal relationship between the parties other than licensor and licensee. TITAN is not undertaking to provide legal advice to Customer, and no attorney-client relationship is being formed by these Terms. If Customer so chooses, Customer should hire counsel of its choice to review these Terms.

These Terms shall be governed by the laws of the State of Colorado, without giving effect to its conflicts of law principles. In the event of any dispute, the prevailing party shall be entitled to recover reasonable costs and attorney's fees. Customer and TITAN agree to submit to the personal and exclusive jurisdiction of the courts

located within the county of Arapahoe, Colorado. Regardless of any statute or law to the contrary, any claim or cause of action arising out of or related to use of the Service must be filed within one (1) year after such claim or cause of action arose or be forever barred.

**Assignment**

Neither party may assign any of its rights or obligations hereunder, whether by operation of law or otherwise, without the prior written consent of the other party (not to be unreasonably withheld). Notwithstanding the foregoing, either party may assign these Terms in their entirety, without consent of the other party, in connection with a merger, acquisition, corporate reorganization, or sale of all or substantially all of its assets. A party's sole remedy for any purported assignment by the other party in breach of this paragraph shall be, at the non-assigning party's election, termination of the Service upon email notice to the assigning party. Subject to the foregoing, these Terms shall bind and inure to the benefit of the parties, their respective successors and permitted assigns.

**Severability**

If any of these terms are deemed invalid or unenforceable for any reason, then the court should endeavor to give effect to the parties' intentions as reflected in the provision, and the invalid or unenforceable provision will be severed from these terms and the remaining terms will continue to apply.

**Acceptance**

By clicking on the Accept button below, Customer agrees to abide by all terms and conditions of the License Agreement with TITAN.

**License was accepted on Jan 24, 2018 by Lee Ferry <lferry@nationalcost.com>**

# ARMOR® TERMS OF SERVICE

(Last modified May 17, 2010)

**BY ACCEPTING these Terms of Use (the "Terms") and using the TITAN Armor® website, you are warranting that you understand, agree to, and accept the Terms contained herein.**

## Definitions

The term "TITAN" means TITAN Manufacturing Solutions, Inc. The term "**Service**" means the online, web-based application and platform provided by TITAN via <http://www.titanarmor.com> and its associated web pages. The term "**User**" means any individual who is authorized to use the Service by his/her Company and/or TITAN.

## Privacy and Confidentiality

TITAN is committed to protecting User's privacy. TITAN will not sell, share, or rent User's personal information to any third party. Like most interactive web sites, the Service uses cookies to enable TITAN to retrieve User details for each visit. Cookies are used in some areas of the Service to enable the functionality of these areas.

Without limiting the above, TITAN and User shall maintain appropriate administrative, physical, and technical safeguards for protection of the security, confidentiality and integrity of User's data. User is responsible for the confidentiality and use of User's username, password and data. User agrees to immediately notify TITAN if User becomes aware of any loss or theft or unauthorized use of this information. User is also responsible for all electronic communications of any kind contained within emails or otherwise entered electronically through the Service.

## User Restrictions

User shall be responsible for the accuracy, quality, integrity and legality of all User's data and of the means by which User acquires such data. Use of the Service is further restricted as follows:

1. The Service is for commercial use only.
2. User must provide his/her legal full name, a valid email address, and any other information requested in order to complete the signup process.
3. User's login may only be used by one person – a single login shared by multiple people is not permitted.
4. The Service may only be used for lawful purposes. Sending or solicitation of any material that violates any law is prohibited. This includes, but is not limited to, any material that is obscene, threatening, harassing, libelous, defamatory, unlawful, pornographic, hateful, racially or ethnically offensive or encourages conduct that would be considered a criminal offense, gives rise to civil liability, violates any law or is otherwise inappropriate, or in any way violates intellectual property laws or a third party's intellectual property rights. User agrees to comply with all applicable local, state and federal regulations in connection with its use of the Service, including without limitation those related to privacy and electronic communications.
5. If User's bandwidth usage exceeds 300 MB/month, or significantly exceeds the average bandwidth usage (as determined solely by TITAN) of other Users, TITAN reserves the right to immediately disable User's account or throttle User's file hosting until User can reduce its bandwidth consumption.
6. User shall not send or store material containing software viruses, worms, Trojan horses or other harmful computer code, files, scripts, agents or programs which would interfere with or disrupt the integrity or performance of the Service or the data contained therein.
7. User shall not attempt to gain unauthorized access to the Service or its related systems or networks. User must not modify, adapt or hack the Service or modify another website so as to falsely imply that it is associated with the Service.
8. User shall not license, rent, sell, lease, transfer, assign, distribute, display, host, outsource, disclose, or otherwise commercially exploit or make any aspect of the Service available to any unauthorized User of the Service, including but not limited to, "mirroring" or "framing" any part of the Service, or creating Internet links to the Service, which include log-in information, user names, passwords, and/or secure cookies.
9. User shall not (and shall not allow any third party to) copy, modify, reproduce, distribute, republish, display, post or transmit in any form or by any means, create a derivative work of, reverse engineer, or decompile any aspect of the Service, or otherwise attempt to create unauthorized access to the Service and/or modified versions of the Service, including (without limitation) for the purpose of building a similar or competitive product or service.
10. User will not in any way express or imply that any opinions contained in User's data are endorsed by TITAN. User agrees that unless explicitly stated otherwise, any new features that augment or enhance the Service, and/or any new service(s) subsequently integrated into the Service will be subject to these Terms. Continued use of the Service after any such changes shall constitute User's consent to such changes.

## **Termination**

In the event that TITAN has reasonable grounds to believe that User has violated this Agreement, has otherwise acted unlawfully, or User has caused immediate, material and ongoing harm to TITAN or others through its use of the Service, TITAN may immediately terminate User's access to the Service. User acknowledges that termination may be effected without notice to User. Upon termination of the Service, User shall have no rights to continue use of the Service, but all of these Terms shall survive any termination of the Service.

Failure of TITAN to enforce any of the provisions set out in these Terms, or failure to exercise any option to terminate, shall not be construed as waiver of such provisions and shall not affect the validity of these Terms or any part thereof, or the right thereafter to enforce each and every provision.

## **Warranties and Disclaimers**

The Service is provided "as is" and "as available" without warranties of any kind either express or implied. User understands and agrees that it uses the Service at its own discretion and risk and that it will be solely responsible for any damages to its computer system or loss of data that results from use of the Service. TITAN DOES NOT REPRESENT THAT THE SERVICE WILL BE SECURE, TIMELY, UNINTERRUPTED OR ERROR-FREE OR THAT ALL ERRORS IN THE SERVICE AND/OR DOCUMENTATION WILL BE CORRECTED OR THAT THE SYSTEM THAT MAKES THE SERVICE AVAILABLE WILL BE FREE OF VIRUSES OR OTHER HARMFUL COMPONENTS. TITAN shall not be liable for any failure to provide Service which is due to an event beyond TITAN's reasonable control.

## **Notification of Changes**

TITAN reserves the right to change these Terms, from time to time as it sees fit. If there are any changes to these Terms, TITAN will post notice of such changes to the Armor® site ([www.titanarmor.com](http://www.titanarmor.com)). User is therefore advised to re-read this statement on a regular basis. If User does not agree to any of such changes, User has the right to terminate the use of the Service. User's continued use of the site shall conclusively confirm its acceptance of any such changes.



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7. User shall not attempt to gain unauthorized access to the Service or its related systems or networks. User must not modify, adapt or hack the Service or modify another website so as to falsely imply that it is associated with the Service.
8. User shall not license, rent, sell, lease, transfer, assign, distribute, display, host, outsource, disclose, or otherwise commercially exploit or make any aspect of the Service available to any unauthorized User of the Service, including but not limited to, "mirroring" or "framing" any part of the Service, or creating Internet links to the Service, which include log-in information, user names, passwords, and/or secure cookies.
9. User shall not (and shall not allow any third party to) copy, modify, reproduce, distribute, republish, display, post or transmit in any form or by any means, create a derivative work of, reverse engineer, or decompile any aspect of the Service, or otherwise attempt to create unauthorized access to the Service and/or modified versions of the Service, including (without limitation) for the purpose of building a similar or competitive product or service.
10. User will not in any way express or imply that any opinions contained in User's data are endorsed by TITAN. User agrees that unless explicitly stated otherwise, any new features that augment or enhance the Service, and/or any new service(s) subsequently integrated into the Service will be subject to these Terms. Continued use of the Service after any such changes shall constitute User's consent to such changes.

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